

Amendment No. 3 to HB0793

Clemmons  
Signature of Sponsor

**AMEND Senate Bill No. 836**

**House Bill No. 793\***

by deleting subdivision (a)(2) in Section 1 and substituting:

(2) Is in the process of obtaining or applying for United States citizenship  
or other legal immigration status;

**AND FURTHER AMEND** by deleting subsections (b) and (c) in Section 1 and substituting:

(b) LEAs and public charter schools shall not deny enrollment to, or withdraw the enrollment of, any student based on the student's failure to produce documentation sufficient to establish that the student meets one (1) of the criteria in subsection (a). LEAs and public charter schools shall immediately enroll students who are otherwise eligible to attend the LEA or public charter school regardless of whether the student produces documentation sufficient to establish that the student meets one (1) of the criteria in subsection (a).

(c)

(1) Each LEA and public charter school shall, for the 2026-2027 school year and for each school year thereafter, report to the department of education the number of students who:

(A) Enrolled in the LEA or public charter school;

(B) Produced documentation sufficient to establish that the student meets one (1) of the criteria in subsection (a);

(C) Failed or refused to produce documentation pursuant to subsection (a), including in the report the reason provided by the student or the student's parent for their failure or refusal to comply;

(D) Produced documentation insufficient to establish that the student meets one (1) of the criteria in subsection (a), including in the report a brief description of why the documentation was insufficient to establish the student's lawful presence in the United States; and

(E) Produced documentation establishing that the student meets one (1) of the criteria in subsection (a), including in the report a list of the types of forms or documents produced that were sufficient to establish the student's lawful presence in the United States.

(2) An LEA or public charter school shall not include in any report submitted pursuant to this subsection (c) any personally identifiable information for a student or a student's parent. Any personally identifiable information collected for purposes of this section must be maintained separately from other student records and permanently destroyed within forty eight (48) hours of the submission of the report required in subdivision (c)(4). Any personally identifiable information collected for purposes of this section must be aggregated into summary statistics before the information is reported in accordance with this subsection (c).

(3) Each LEA and public charter school shall comply fully with federal law including, but not limited to, the Family Educational Rights and Privacy Act , 20 U.S.C. § 1232g, when collecting and reporting information pursuant to this section.

(4) The department of education shall compile the information received from each LEA and public charter school pursuant to subdivision (c)(1), aggregate the information received into summary statistics for all schools, and report the aggregated information to the department of finance and administration, the centralized immigration enforcement division within the department of safety, the governor, the speaker of the senate, and the speaker of

the house of representatives no later than July 1, 2027, for the 2026-2027 school year. All subsequent reports of the aggregated information described in this subdivision (c)(4) for subsequent school years must be submitted no later than July 1 for the immediately preceding school year.

(d) Notwithstanding another law to the contrary, an LEA or public school, including a public charter school, that enrolls a student who failed or refused to produce the documentation described in subsection (a), or who produced documentation insufficient to establish that the student meets one (1) of the criteria in subsection (a) is not implementing a sanctuary policy as that term is defined in § 7-68-102.